

CHAPTER 31.

An Act to extend the periods during which guarantees may respectively be given and remain in force under the Overseas Trade Acts, 1920 to 1929. [1st August 1930.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Extension of periods during which guarantees under Overseas Trade Acts, 1920 to 1929, may be given and remain in force.

1. The period within which new guarantees may be given under the Overseas Trade Acts, 1920 to 1929, in connection with export transactions shall be extended so as to expire on the thirty-first day of March, nineteen hundred and thirty-five, and the period during which guarantees so given (including renewed guarantees) may remain in force shall be extended so as to expire on the thirty-first day of March, nineteen hundred and forty.

Short title.

2. This Act may be cited as the Overseas Trade Act, 1930, and the Overseas Trade Acts, 1920 to 1929, and this Act, may be cited together as the Overseas Trade Acts, 1920 to 1930.

CHAPTER 32.

An Act to make better provision for the defence of poor persons in criminal cases.

[1st August 1930.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Defence of poor persons committed for trial.

1.—(1) Any person committed for trial for an indictable offence shall be entitled to free legal aid in the preparation and conduct of his defence at the trial and to have solicitor and counsel assigned to him for that

purpose in the prescribed manner, if a certificate (in this Act referred to as a "defence certificate") is granted in respect of him in accordance with the provisions of this section.

(2) Subject to the provisions of this section, a defence certificate may be granted in respect of any person—

- (a) by the committing justices, upon his being committed for trial; or
- (b) by the judge or chairman of the court before which he is to be tried, at any time after reading the depositions,

and such justices, judge, or chairman are in this section referred to as "the certifying authority."

(3) A defence certificate shall not be granted in respect of any person unless it appears to the certifying authority that his means are insufficient to enable him to obtain such aid, but where it so appears to the certifying authority, that authority—

- (a) shall grant a defence certificate in respect of any person committed for trial upon a charge of murder; and
- (b) may grant a defence certificate in respect of any person committed for trial upon any other charge if it appears to the certifying authority, having regard to all the circumstances of the case (including the nature of such defence, if any, as may have been set up), that it is desirable in the interests of justice that he should have legal aid in the preparation and conduct of his defence at the trial.

2. If it appears to a court of summary jurisdiction or examining justices that the means of any person charged before them with any offence are insufficient to enable him to obtain legal aid and that by reason of the gravity of the charge or of exceptional circumstances it is desirable in the interests of justice that he should have free legal aid in the preparation and conduct of his defence before them, the court or justices may grant in respect of him a certificate (in this Act referred to as a "legal aid certificate"), and thereupon he shall be entitled

Legal aid
before
courts of
summary
jurisdiction.

to such aid and to have a solicitor and (where he is charged with murder and the justices think fit) counsel assigned to him for that purpose in the prescribed manner.

Amend-
ments of
8 Edw. 7.
c. 15.

3.—(1) Where a defence certificate or a legal aid certificate has been granted under this Act in respect of any person, an order under section one of the Costs in Criminal Cases Act, 1908, directing the payment out of local funds of the costs of his defence in accordance with the provisions of that Act shall be made, in the case of a defence certificate, by the court of assize or quarter sessions before which he is prosecuted or tried, and in the case of a legal aid certificate, by the court of summary jurisdiction before which, or the examining justices before whom, he is charged, and for that purpose a court of summary jurisdiction shall have power to make such an order whether or not the charge is for an indictable offence and examining justices shall have power to make such an order whether or not the charge is dealt with summarily.

(2) Subject to the regulations of the Secretary of State made under the Costs in Criminal Cases Act, 1908, the costs directed to be paid by such an order as aforesaid shall include—

- (a) in the case of an order made in consequence of the granting of a defence certificate, the fees of solicitor and counsel and the costs of a copy of the depositions;
- (b) in the case of an order made in consequence of the granting of a legal aid certificate, the fees of a solicitor;

and may include any other expenses properly incurred in carrying on the defence.

(3) If upon the trial before a court of assize or quarter sessions of a person in respect of whom a defence certificate has not been granted, his defence is undertaken by counsel at the request of the judge or chairman of the court, the costs which the court may under section one of the Costs in Criminal Cases Act, 1908, by order direct to be paid out of local funds in accordance with the provisions of that Act, shall include the fees of such counsel.

4. The Attorney-General, with the approval of the Rules. Lord Chancellor and a Secretary of State, may make rules for carrying this Act into effect, and such rules shall in particular prescribe—

- (a) the form of the certificates to be granted under this Act; and
- (b) the manner in which counsel and solicitors are to be assigned in pursuance of such certificates,

and all rules so made shall be laid before each House of Parliament as soon as may be after they are made for a period of not less than thirty days during the session of Parliament, and if either House before the expiration of that period resolves that any such rule should be annulled it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or to the making of any new rule.

5.—(1) This Act may be cited as the Poor Prisoners' Defence Act, 1930, and shall come into operation on the first day of January, nineteen hundred and thirty-one.

Short title,
commence-
ment, inter-
pretation,
extent and
repeal.

(2) In this Act, the expression "judge" includes a deputy recorder, the expression "chairman" includes a deputy chairman or acting chairman, and the expression "prescribed" means prescribed by rules made under this Act.

(3) This Act shall not extend to Scotland or to Northern Ireland.

(4) The Poor Prisoners' Defence Act, 1903, and subsection (3) of section one of the Costs in Criminal Cases Act, 1908, are hereby repealed :

3 Edw. 7.
c. 38.

Provided that any rule made or certificate given under the Poor Prisoners' Defence Act, 1903, in force at the commencement of this Act, shall continue in force and have effect as if it had been made or given under this Act.

